

Third, Fresno has demonstrated the need for prejudgment possession. Fresno's Moving papers make it clear that the "Project was scheduled to begin construction in the spring of 2026. The Project is now scheduled to begin construction in the early summer of 2027." (Lee Decl., ¶ 3.) Furthermore, Fresno requires prejudgment possession to fully vacate the property and demolish the improvements. (*Id.*) Defendants cite no authority for their argument that possession cannot be granted unless the project is in serious, immediate peril of failing or that the project may lose funding. (Opposition Papers, pg. 7:13-15.)

By contrast, defendants' argue that "[t]he Project will deprive EAW the ability to continue its business operations," and Erik Honarchian "will be entirely deprived of his real property as well as his income from the monthly leases and his employment with EAW." (Defendants' Opposition, pps. 8:27-28; 9:7-9.)

Accordingly, the Court grants Fresno's motion for prejudgment possession.

Tentative Ruling

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Tentative Ruling

Re: ***Irma Lucero Eastwood v. Woodworth Investments LLC***
Superior Court Case No. 24CECG01795

Hearing Date: June 24, 2026 (Dept. 501)

Motion: Plaintiff Irma Lucero Eastwood's Motion for Protective Order against Defense Counsel's Deposition Conduct and to Compel Expert Depositions

Tentative Ruling:

To deny Plaintiff Irma Lucero Eastwood's motion for protective order against defense counsel's deposition conduct and to compel expert depositions.

Explanation:

On June 2, 2026, plaintiff filed the instant motion and an ex parte application for the same motion. The only difference between the two documents is that in the caption, one contains the designation "Ex Parte" and the other does not. Otherwise, the motions are identical. For instance, text of the notice of motion is identical for both filings:

PLEASE TAKE NOTICE that on June 2, 2026, at 3:30 p.m., or as soon thereafter as the matter may be heard, in Department 502 of the Fresno County Superior Court, B.F. Sisk Courthouse, Plaintiff IRMA LUCERO EASTWOOD applies ex parte, pursuant to Code of Civil Procedure sections 2025.420, 2025.470, 2025.480, 2034.410 and 2034.415, and California Rules of Court, rules 3.1200–3.1207, for an order: ...

California Rules of Court, rule 3.1110, subdivision (a) states that "[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order." California Rules of Court, rule 3.1110, subdivision (b)(1) provides that a motion must provide "[t]he date, time, and location, if ascertainable, of any scheduled hearing and the name of the hearing judge, if ascertainable."

Plaintiff's notice of motion is defective. Plaintiff critically failed to provide timely notice of this hearing date and time to defendant, and misstated the nature of the motion. (Code Civ. Proc., §§ 1010, 1005, subd. (b); Cal. Rules of Court, rule 3.1110(b); *Bohn v. Bohn* (1913) 164 Cal. 532, 536-537.)

Furthermore, the Court notes defendants have not waived the defective notice as they did not file an opposition. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697 ["It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the

notice of motion. (Citations.) This rule applies even when no notice was given at all. (Citations.)”].)

With respect to plaintiff's request to compel a second session for the deposition of defendants' retained neurosurgeon and designated expert, Dr. Motasem Refaat, the Court further observes that the meet and confer requirements were not met. The defendants' opposition to plaintiff's ex parte application provides that it was defendants who tried to reschedule a second session, and even then plaintiff's counsel did not meaningfully respond. (Hart Decl., ¶¶ 6-9, Exs. C-E.) (Code Civ. Proc., § 2025.420, subd. (a).)

Furthermore, even if plaintiff established compliance with the meet and confer requirements met, plaintiff has not adhered to Fresno's local rules which require that the moving party first request an informal Pretrial Discovery Conference. Under Local Rule 2.1.17, "Except for motions to compel the deposition of a duly noticed party or subpoenaed person(s) who have not timely served an objection pursuant to Code of Civil Procedure section 2025.410 or otherwise obtained the consent of all interested parties agreeing to the non-appearance of the party or person(s) at the deposition as noticed or subpoenaed, ... no motion under sections 2016.010 through 2036.050, inclusive, of the California Code of Civil Procedure shall be heard in a civil unlimited case unless the moving party has first requested an informal Pretrial Discovery Conference with the Court and such request for a Conference has either been denied and permission to file the motion is expressly granted via court order or the discovery dispute has not been resolved as a consequence of such a conference and permission to file the motion is expressly granted after the conference." (Fresno Sup. Ct. Local Rules, rule 2.1.17(A).)

Finally, the Court declines to address the issue of plaintiff's request to proceed and complete the deposition of defendants' retained expert Sarah Larsen, RN, MSN, FNP, which was scheduled for June 4, 2026. The instant motion was filed on June 2, 2026, and was accordingly premature.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/23/26
(Judge's initials) (Date)